

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                 |                           |                                                       |                                               |                                            |
|---------------------------------------------------|-------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Noah Deutsch                     | Team:<br>Team # 8                               | CCRB Case #:<br>200301734 | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                   |                                                 |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 02/05/2003 2:50 AM | Location of Incident:<br>§ 87(2)(b) Parking lot | Precinct:<br>75           | 18 Mo. SOL<br>8/5/2004                                | EO SOL<br>8/5/2004                            |                                            |
| Date/Time CV Reported<br>Fri, 03/07/2003 3:14 PM  | CV Reported At:<br>CCRB                         | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 03/07/2003 3:14 PM |                                               |                                            |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Dominick Nasso  | 26520  | 924241 | PBBN TF |
| 2. POM Luis Gutierrez  | 29941  | 925408 | PBBN TF |
| 3. SGT Raymond Festino | 03697  | 915709 | PBBN TF |

| Officer(s)            | Allegation                                                                                                   | Investigator Recommendation |
|-----------------------|--------------------------------------------------------------------------------------------------------------|-----------------------------|
| A.SGT Raymond Festino | Abuse: Sgt. Raymond Festino authorized the stop and questioning of § 87(2)(b) and § 87(2)(b) and § 87(2)(b). | § 87(2)(g), § 87(4-b)       |
| B.POM Dominick Nasso  | Abuse: PO Dominick Nasso frisked § 87(2)(b).                                                                 | § 87(2)(g), § 87(4-b)       |
| C.POM Luis Gutierrez  | Abuse: PO Luis Gutierrez frisked and searched § 87(2)(b) and § 87(2)(b).                                     | § 87(2)(g), § 87(4-b)       |
| D.POM Luis Gutierrez  | Abuse: PO Luis Gutierrez searched the car in which § 87(2)(b) was an occupant.                               | § 87(2)(g), § 87(4-b)       |
| E.POM Luis Gutierrez  | Abuse: PO Luis Gutierrez threatened retaliation if § 87(2)(b) made a civilian complaint.                     | § 87(2)(g), § 87(4-b)       |
| F.POM Luis Gutierrez  | Discourtesy: PO Luis Gutierrez spoke rudely to § 87(2)(b) and § 87(2)(b).                                    | § 87(2)(g), § 87(4-b)       |
| § 87(2)(g), § 87(4-b) | § 87(2)(g), § 87(4-b)                                                                                        | § 87(2)(g), § 87(4-b)       |

### Synopsis

On the early morning of February 5, 2003, § 87(2)(b) drove his car into the parking lot of § 87(2)(b) to drop off his friend, § 87(2)(b) at his residence there. A Brooklyn North anti-crime unit consisting of PO Dominick Nasso, PO Luis Gutierrez, and Sgt. Raymond Festino, approached § 87(2)(b)'s car and asked the men to show ID confirming that they had reason to be on the premises. When § 87(2)(b) and § 87(2)(b) exited the car, they were both frisked, and PO Gutierrez searched § 87(2)(b)'s car, finding materials from the Police Academy indicating that § 87(2)(b) had applied for entry into the recruit class. When § 87(2)(b) protested, stating that he would file a complaint, PO Gutierrez threatened to sabotage his application to the Academy. PO Gutierrez also spoke rudely to both men in the process.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

### Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b) student at § 87(2)(b), was interviewed on April 3, 2003, at the CCRB (encl. 5a-c).

The incident occurred on Wednesday, February 5, 2003, at approximately 2:50 AM. § 87(2)(b) had just pulled in to the parking lot of § 87(2)(b). He was dropping off his friend, § 87(2)(b) § 87(2)(b) who lives in that building. § 87(2)(b) and § 87(2)(b) observed a brown Econoline van pull into the parking lot. The van was driving very slowly, and § 87(2)(b) remarked that it "doesn't look right," that maybe it was somebody trying to rob them. The van pulled up next to § 87(2)(b)'s car, a rented Chevy Impala. The van was facing the opposite direction as the Impala, so that the driver of the van was directly across from § 87(2)(b). The driver of the van rolled down his window, and asked § 87(2)(b) if he lived there. § 87(2)(b) said, "Why?" The man said, "Because I asked you a question." § 87(2)(b) told the driver of the van that, if he was lost, he should just tell them the street he was looking for. § 87(2)(b) added that this was not the neighborhood to be "pulling up on people like that." The driver of the van again said that he had asked a question and asked § 87(2)(b) again if he lived there. § 87(2)(b) said, "Who are you supposed to be?" The driver of the van said, "You know who we are." § 87(2)(b) told § 87(2)(b) to "just drive." The driver of the van said, "Don't move the car; we're the police." He showed a shield that was around his neck. § 87(2)(b) apologized, explaining that he did not know they were the police, and noting that he did not believe that the police would be driving an older Econoline van. The driver of the van was later identified as PO Luis Gutierrez. PO Gutierrez told § 87(2)(b) to put the car in park. He asked § 87(2)(b) if he had ID, and § 87(2)(b) said he did. PO Gutierrez then asked § 87(2)(b) if he had ID on him, and § 87(2)(b) said that he did not, although he would be happy to go upstairs and get ID if it was necessary. PO Gutierrez said it was not necessary and told them to wait. He parked the van a short distance away, and he and two other officers got out and approached § 87(2)(b)'s car.

An officer later identified as PO Nasso approached § 87(2)(b) on the drivers side while the other two officers approached the passenger side of the car. PO Nasso asked § 87(2)(b) for his drivers license. He told § 87(2)(b) to put the car in park and turn it off, which he did. PO Nasso had § 87(2)(b) step out of the vehicle before he went inside his pocket to retrieve his license. Meanwhile, the other two officers asked § 87(2)(b) for ID, which he was again explaining that he did not have (allegation A). PO Nasso looked at § 87(2)(b)'s ID. He then told § 87(2)(b) to move to the rear of the vehicle. PO Nasso directed § 87(2)(b) to hold his hands up and submit to a frisk for weapons. § 87(2)(b) said, "okay, fine," and PO Nasso patted him down (allegation B). PO Nasso told § 87(2)(b) that he could relax. He said that the reason they had approached them was because they looked suspicious sitting inside their car in the parking lot. He added that there had been recent reports of "push-in" robberies at that location. § 87(2)(b)

reiterated that he was simply dropping off his friend. PO Nasso said he was merely trying to explain himself, and if § 87(2)(b) did not want to hear it, fine.

During this conversation, § 87(2)(b) observed that § 87(2)(b) was being searched on the other side of the car (allegation C). § 87(2)(b) told the other two officers that he did live in the building. The third officer, later identified as Sgt. Festino, opened the front passenger side door of the Impala and checked the inside of the door. § 87(2)(b) immediately said, "I did not give you consent to search the vehicle." Sgt. Festino closed the door and said, "You're right; I'm sorry." PO Gutierrez said, "forget that," and opened the front passenger door and began to search the vehicle, checking under the seat, etc (allegation D). § 87(2)(b) turned to PO Nasso and said, "What is this guy doing searching the vehicle?" PO Nasso said, "He's not searching the vehicle." § 87(2)(b) said, "So why is he inside the vehicle?" PO Gutierrez exited the front passenger seat area and § 87(2)(b) told him that he had not given him consent to search the vehicle and asked him what his shield number was. PO Gutierrez appeared to be angered by this request and said, "You'll get my shield number." PO Nasso told § 87(2)(b) to calm down. PO Gutierrez came around the car and smiled at § 87(2)(b) and proceeded to open the front driver's side door and check the area around the driver's seat.

PO Gutierrez then opened the rear driver's side door and started searching the back seat area of the car. § 87(2)(b)'s bookbag was on the rear seat. The bag contained his books for school and other personal papers. § 87(2)(b) looked in through the rear window to see exactly what PO Gutierrez was doing. PO Nasso kept saying, "Why won't you look at me? I'm talking to you." § 87(2)(b) told him that he wanted to see what PO Gutierrez was doing inside his car. PO Gutierrez opened § 87(2)(b)'s bookbag and started rifling through the contents. He found a letter to § 87(2)(b) from the Police Department's Applicant Processing Division, along with the answer key to the applicants' test that § 87(2)(b) had printed out online. There were also materials from the Department of Corrections test. PO Gutierrez said, "Get the fuck outta here. What's this?" He showed the papers to PO Nasso. He was standing on the ground, but he was leaning his body inside the car to search the bag. § 87(2)(b) said, "You're going through my mail?" PO Gutierrez told § 87(2)(b) that it was "right there in plain view." At his interview, § 87(2)(b) reiterated that the letter had been inside an envelope, which was inside of his bookbag. PO Gutierrez asked § 87(2)(b) if he was "trying to get on the job." § 87(2)(b) refused to answer, saying that he had no right to search his bag. PO Gutierrez became "irate." PO Nasso took § 87(2)(b) aside and asked him what was going on, if he was trying to get on the job. When § 87(2)(b) said that he was, PO Nasso asked him who his investigator was (as § 87(2)(b) explained, all applicants to the Police Academy are subject to a background check). § 87(2)(b) first refused to answer. He then stated that he did not have an investigator as of yet. He then stated again that PO Gutierrez had no right to do what he was doing, saying, "Now this guy is taking it really too far."

Addressing PO Gutierrez, Sgt. Festino said, "Lou, let's just go." § 87(2)(b) who was by now standing next to § 87(2)(b) toward the rear of the car on the drivers side, addressed Sgt. Festino saying, "Sarge, this is wrong; you know this is wrong." PO Gutierrez exited the vehicle and demanded to know who § 87(2)(b)'s investigator was. § 87(2)(b) told him that he did not have an investigator. At that point, he pulled his shield from around his neck and showed it to § 87(2)(b). § 87(2)(b) wrote down his shield number, 29941, and that of PO1, 26520, on a piece of paper, along with the license plate of the van. PO Gutierrez stood nose to nose with § 87(2)(b) six inches from his face and said, "You run your mouth about this and I'll run my mouth. I have access to the computer and I know all the investigators. I will tell every single investigator not to hire you" (allegation E). He told § 87(2)(b) that, if he wanted to make it into the Academy, he should "keep his mouth shut." § 87(2)(b) responded, "You know you're threatening me now." Addressing Sgt. Festino, § 87(2)(b) said, "Now this guy wants to make threats?" Sgt. Festino said, "Come on guys, let's just go." § 87(2)(b) noted that it was the second or third time that the sergeant had made such a suggestion. § 87(2)(b) told the sergeant that he used to work for the MTA, and knew that what was going on was wrong. In this manner, § 87(2)(b) and § 87(2)(b) both protested their treatment. PO Gutierrez said, "Great, now we have two jailhouse lawyers courtesy of Rikers Island" (allegation F). He told § 87(2)(b) to remember what he had said about running his mouth. § 87(2)(b) stated that he had a right to file a complaint about the incident, and PO Gutierrez responded that he had a right to talk to the investigators: "If you cause trouble for me, I'll cause trouble for you." § 87(2)(b) said to Sgt. Festino, "This guy's out of control. Why don't you take control of the situation?" Sgt. Festino and PO Nasso eventually did shake hands with § 87(2)(b). At his interview, § 87(2)(b) stated that he did not have a problem with Sgt. Festino, who apologized to § 87(2)(b). § 87(2)(b) said that everything could be settled if PO Gutierrez apologized. PO Gutierrez had a "look of disgust" as he stated, "You guys are beneath me."

Why would I apologize to you?” (allegation F) He then walked back over to the van and got in the driver’s seat.

§ 87(2)(b) stated that PO Gutierrez identified himself as “Officer Alvarez,” and he referred to PO Gutierrez by that name throughout his interview. § 87(2)(b) stated that § 87(2)(b) asked him what his name was at some point during the incident, and he stated “Alvarez.” However, he stated that he did not believe that that was his real name. The sergeant called him ‘Lou’ once or twice during the incident. § 87(2)(b) doing nothing illegal at the time that the officers stopped him. They had not been there for one minute before the van pulled up. He noted that PO Gutierrez did at one point state that the fact that § 87(2)(b) had no ID on him gave them the right to put § 87(2)(b) “through the system” according to NY State law. § 87(2)(b) said that he was “disgusted” by what took place. He emphasized that PO Gutierrez seemed out of control and threatening. Initially, he was not going to file a complaint, because he feared that it would cause problems for him in the future in terms of his Police Academy application. This fear accounted for the lapse in time between the incident and when § 87(2)(b) made his complaint. § 87(2)(b) also noted that PO Nasso took his ID info before they left the scene after someone had said something about a “250”, it could have been one of the officers or § 87(2)(b) § 87(2)(b) observed PO Nasso filling out a 250.

§ 87(2)(b)

§ 87(2)(b) § 87(2)(b), was interviewed on April 3, 2003, at the CCRB (encl. 6a-d).

§ 87(2)(b) was dropping § 87(2)(b) off at his apartment at § 87(2)(b) in the early morning hours of February 5, 2003. They were stopped in the parking lot of the building when an unmarked 1980s model Ford Econoline van entered the parking lot. § 87(2)(b) remarked to § 87(2)(b) that whoever was inside the van was going to “try something,” because they were slowly approaching where § 87(2)(b)’s vehicle was parked. The van drove up in the opposite direction of the way § 87(2)(b)’s car was parked and stopped so that the driver’s windows were across from one another. The driver of the van, later identified as PO Gutierrez put down the window and said, “You guys live here?” § 87(2)(b) said, “Why?” § 87(2)(b) thought that the man was lost and asked him where he was going. § 87(2)(b) said, “Who are you supposed to be?” He told § 87(2)(b) to put the car in drive and go. PO Gutierrez said, “You know who we are. We’re the police.” PO Gutierrez pulled out a shield that was on a chain around his neck and told them to leave the car in park. He again asked if they lived there, and § 87(2)(b) said no while § 87(2)(b) answered yes. PO Gutierrez asked § 87(2)(b) if he had identification, and § 87(2)(b) said that he did. He told them to stay there, and pulled the van next to a garbage dumpster.

PO Gutierrez and two other officers, later identified as PO Nasso and Sgt. Festino, exited the van. PO Nasso and Sgt. Festino approached § 87(2)(b) on the driver’s side. PO Gutierrez approached his side of the car. PO Nasso and Sgt. Festino asked § 87(2)(b) for his ID. When he reached for it, they told him to step out of the car first. Meanwhile PO Gutierrez asked § 87(2)(b) for ID (allegation A). § 87(2)(b) told him that his ID was upstairs and offered to go get it. PO Gutierrez said it was “too late for that.” PO Gutierrez directed § 87(2)(b) to step out of the car. He told § 87(2)(b) to put his hands out to the side. § 87(2)(b) said, “You have no probable cause, not even reasonable suspicion, to search me.” He again told § 87(2)(b) to put his hands up to the side. § 87(2)(b) said, “For what?” As he said that, PO Gutierrez put his hands underneath § 87(2)(b)’s armpits and smacked them upwards so that § 87(2)(b) raised his arms up. PO Gutierrez frisked § 87(2)(b) head to toe, and unzipped his jacket, placing his hands inside § 87(2)(b)’s jacket pockets (allegation C). § 87(2)(b) said, “This is straight-up illegal. I know my rights. I used to work for the MTA.” § 87(2)(b) saw that § 87(2)(b) was being searched by PO Nasso, who, § 87(2)(b) later learned, had the shield number 26520 (allegation B). PO Gutierrez told § 87(2)(b) to step to the rear of the car. § 87(2)(b) did so and a second later, § 87(2)(b) came to the back of the car as well. § 87(2)(b) was protesting the stop, and PO Gutierrez stated that § 87(2)(b) did not have ID, which was illegal. He asked § 87(2)(b) if he would rather be searched for weapons or put “through the system.” § 87(2)(b) said, “If I did something wrong, give me a summons or arrest me, then, subsequent to that arrest you can search me. Don’t search me and say, I’m giving you this. It doesn’t work that way.” Both § 87(2)(b) and § 87(2)(b) were unrestrained, standing at the back of the car.

Sgt Festino opened the front passenger door of the car. § 87(2)(b) said, “I did not give you permission to search the car.” Sgt. Festino said, “You know what, you’re right,” and he closed the door. PO Gutierrez said, “Forget this shit,” and went back to the same door and opened it and began to search the car, opening the glove compartment in the process (allegation D). § 87(2)(b) said, “What are you doing?”

I just said I did not give you permission to search the car.” PO Gutierrez then began to search the rear seat of the car. When § 87(2)(b) attempted to protest, PO Nasso tried to distract him saying, “He’s not searching your car. Look at me. Look at me, I’m talking to you.” PO Gutierrez was clearly rooting around in the back seat of the car; § 87(2)(b) could see his head moving up and down and noticed that PO Gutierrez had a flashlight in his hand. § 87(2)(b) said, “What are you talking about? I’m looking at him going through the car.” PO Nasso continued to say, “Look at me when I’m talking to you.” PO Gutierrez then said, “What the fuck is this?” § 87(2)(b) did not know why the officers had exclaimed like that, knowing that neither he nor § 87(2)(b) used drugs or had weapons.

Having exited the car, PO Gutierrez said, “You gotta be fucking kidding me. You’re trying to join the police department?” He was holding a piece of paper in his hand. § 87(2)(b) believed that PO Gutierrez had gone through § 87(2)(b)’s personal papers. At that point § 87(2)(b) became angry, took out a pen and said, “I want everybody’s name and badge number.” PO Gutierrez said, “I know you’re not trying to go into the next class.” § 87(2)(b) said, “You’re going through my mail? That’s a federal offense.” § 87(2)(b) indicated that the paper in PO Gutierrez’s hand had been inside an envelope, which had been inside his bag, inside the car. He started writing down information. PO Gutierrez said, “Don’t tell me about the law; I am the law.” PO Gutierrez told § 87(2)(b) that he had a right to make a complaint, but that “You do what you have to do, I’ll do what I have to do.” § 87(2)(b) said, “Now he’s making threats.” PO Gutierrez asked § 87(2)(b) the name of his investigator and said, “I’ll tell your investigator that you’re a trouble maker. I’ll tell every investigator down there that § 87(2)(b) is a troublemaker and you will not get this job. So feel free to go ahead and make your complaint” (allegation E). § 87(2)(b) again said that he was aware of his rights. PO Gutierrez said, “Great, another jailhouse lawyer courtesy of Rikers Island” (allegation F). § 87(2)(b) said, “I’m not afraid of your threats.” PO Gutierrez got right up in § 87(2)(b)’s face. PO Nasso took a couple of steps back when he did so. PO Gutierrez and § 87(2)(b) stood nose to nose. PO Gutierrez said, “What’s that supposed to mean?” At his interview, § 87(2)(b) stated that it seemed as though PO Gutierrez was trying to get § 87(2)(b) to hit him. § 87(2)(b) stated that he intended to make a complaint. PO Gutierrez told him to go ahead and said, “How bout I lock your friend up right now for not having ID?”

§ 87(2)(b) announced that he was leaving, and he said to Sgt. Festino, “I hope you fill out a 250 for this.” At that point Sgt. Festino identified himself as a sergeant. Indicating PO Gutierrez, § 87(2)(b) said, “Look at him; he’s out of control.” Sgt. Festino asked § 87(2)(b) where he worked and § 87(2)(b) stated that he did not intend to engage in any further discussion. Speaking to PO Gutierrez, Sgt. Festino said, “G, chill. Let’s do a 250.” Sgt. Festino began writing something down at that time. § 87(2)(b) stated that at one point, PO Nasso called PO Gutierrez ‘Lou’. PO Gutierrez had at some point told § 87(2)(b) that his name was Alvarez. Sgt. Festino attempted to explain to § 87(2)(b) what they had been doing, saying that there had been a lot of home invasions in the area. § 87(2)(b) said, “That has nothing to do with us.” § 87(2)(b) added, “Even though I don’t think you were justified in searching him,” meaning § 87(2)(b). “This officer,” meaning PO Gutierrez, “is out of control.” Sgt. Festino said, “Why don’t you guys go ahead and have a nice night.” § 87(2)(b) shook the hand of Sgt. Festino and PO Nasso. § 87(2)(b) told Sgt. Festino that he would be willing to forget the whole thing if PO Gutierrez apologized. § 87(2)(b) interjected that he did not intend to forget about the incident, that he intended to file a complaint. PO Gutierrez said, “Apologize? Apologize for what? What am I going to apologize to you for; you are beneath me” (allegation F). The officers then left the scene, but Sgt. Festino again apologized for the inconvenience.

§ 87(2)(b) went upstairs and started to write down what had happened. He told § 87(2)(b) that he was going to file a complaint. § 87(2)(b) had become hesitant because of the threat that PO Gutierrez had made about sabotaging § 87(2)(b)’s chances of getting into the Police Academy. § 87(2)(b) could only say that it was up to him, but pointed out that the officer could speak to the investigators regardless of whether § 87(2)(b) decided to make a complaint.

## **Results of Investigation**

### **Police Officer Statements**

#### **PO Dominick Nasso**

PO Nasso of Brooklyn North Anti-Crime was interviewed on July 3, 2003, at the CCRB (encl. 8a-c).

PO Nasso, PO Gutierrez, and Sgt. Festino were out on patrol on the early morning of February 5, 2003. He had no memo book entries related to the incident.

While out on patrol, the officers passed by § 87(2)(b) a New York City Housing Authority building. PO Nasso noted that it is a high-crime area. Driving down the street, the officers observed a vehicle parked in the parking lot of § 87(2)(b). They observed the car for a period of approximately five or ten seconds. PO Nasso noted that the parking lot is reserved for residents of the building. All residents are issued a parking plaque, and these plaques are normally displayed in the vehicle's windshield. The car that they saw was not actually in a parking spot, but right in front of the door to the building. The officers found it "kind of odd" that there were two men seated in the car late at night, and there was no parking plaque in the window. PO Nasso was able to see that there was no parking plaque in the windshield of the car from a distance of approximately 50 yards away. He could not tell if the car's ignition was on at that time. PO Nasso noted that there had been some push-in robberies in the area. The car looked like it could be a getaway car, waiting for someone who was committing a crime in the building. The officers decided to drive into the lot and ask the men if they lived in the building. As long as they lived there, the officers would be on their way.

They drove up to the vehicle, identified themselves as NYPD, and asked the men if they lived there. It seemed to PO Nasso that the two men were almost attempting to ignore them. They would not look at the officers. The driver especially was "really aggressive," "nasty", and "uncooperative". The officers then exited their van, and PO Nasso approached driver and said, "I'm not trying to bother you. The reason we're asking is because it's 2:50 AM and we want to make sure you're not robbing the place. If you live here, you're on your way . . . If you don't live here you can't be here because it's a NYCHA building." PO Nasso told the driver of the vehicle that all he needed to see was ID from one of them showing that they lived there, and they would be on their way. Meanwhile, PO Gutierrez had gone to the passenger side of the car. The driver of the vehicle, later identified as § 87(2)(b) said, "I don't need to tell you anything and I am not showing you my ID." He may have mentioned that he had family "on the job." PO Nasso informed § 87(2)(b) that if they did not live there, it constituted a summonsable violation, specifically trespassing. PO Nasso told him to step out of the vehicle while PO Gutierrez told the passenger, later identified as § 87(2)(b) to step out of the vehicle. PO Nasso asked the man to step out of the vehicle for his own safety, noting that the man could reach for something that he could not see if he remained in the car. If the man steps out of the car, he can see if he has a bulge or is sitting on something. Once the man is out of the car, he poses far less danger to the officers' safety. Both men complied. Neither man was frisked or searched. PO Nasso stated that he did not pat down the driver of the car, nor did he witness either of his partners pat down either man. PO Nasso attempted to explain to § 87(2)(b) why they had reason to suspect that something was not right here. § 87(2)(b) appeared very disgruntled. He did not give any explanation for what they were doing there.

At that point, PO Gutierrez told PO Nasso and Sgt. Festino that there was an NYPD recruit manual inside the car. PO Gutierrez may have said that it was sitting on the floor around the passenger seat. PO Gutierrez picked up the manual, held it up, and replaced it inside the car. Asked if there came a time when PO Gutierrez searched the car, PO Nasso said, "I don't think so." PO Nasso did not remember PO Gutierrez going inside the car. PO Nasso did not recall PO Gutierrez searching the rear of the car, nor did he remember if PO Gutierrez opened any of the doors of the car. He did not observe Sgt. Festino go inside the car. PO Nasso stated that up to that point, the officers did not have probable cause to search the car simply because the men had not identified themselves. PO Nasso did not remember PO Gutierrez searching through a bag inside the car.

The men had proceeded to the rear of the car. PO Nasso asked them if one of them was on the job. PO Nasso noted that he was not sure about which man was the passenger and which was the driver at that time, but that one of them, he believed the passenger, said that he was trying to get on the job, and that he currently worked as a § 87(2)(b). Sgt. Festino told him that, if he was a member of the service in any capacity he needed to identify himself immediately.

It went on that way for about 15 minutes, with the men refusing to produce ID. Eventually, one of the men, he did not remember which one, took out a drivers license showing that he lived in the building, and the officers told them to have a nice day and left the scene. PO Nasso could not recall if it was he or one of his partners who examined the ID. He stated that he thought all three of them had looked at it. PO Nasso did not specifically remember if PO Gutierrez ever had a verbal altercation with § 87(2)(b). The men cursed at the officers as they were driving away. No stop and frisk report was prepared because there

had been no perceived crime committed, only a violation, trespassing. PO Nasso did not know if there was any documentation of the stop, only that he made no note of it in his memo book.

PO Nasso stated that he had his shield displayed during the incident, and did not remember if either of the men ever asked him to identify himself by name and shield number. PO Nasso did not remember if PO Gutierrez was asked to identify himself by name and shield number. PO Nasso did not remember any discussion of the police academy, and did not remember PO Gutierrez threatening to sabotage either man's chances of getting onto the force. He denied that PO Gutierrez ever said, "We have two jailhouse lawyers courtesy of Rikers Island." PO Nasso could not recall if he apologized to either man before leaving the scene, but stated that normally he would do so. He recalled no specific conversation among the officers about a UF-250 being prepared.

### **PO Luis Gutierrez**

PO Gutierrez of Brooklyn North Antic-Crime was interviewed on July 3, 2003, at the CCRB (encl. 7a-c).

PO Gutierrez provided the following narrative concerning the events of February 5, 2003: at approximately 2:50 AM, PO Gutierrez was conducting routine patrol with his partners, PO Nasso and Sgt. Festino. The officers were in an unmarked van. As the officers were driving by § 87(2)(b) they observed a car sitting in the parking lot. PO Gutierrez was able to see that there were two men inside the car. He stated that it seemed peculiar to him considering the late hour. PO Gutierrez stated that, as they approached the car, they noticed that it had no parking permit for the building displayed in the windshield: "Being that it is a high crime area, we decided to use our right of police inquiry." They drove up to the car and asked the men what they were doing. The man seated in the passenger seat was "very agitated". PO Gutierrez stated that the was "evasive with his answers" and that he had a "look of disdain on his face." The officers exited the van and PO Gutierrez approached the driver and introduced himself, stating his name and his command. He did this because he did not want the men to think that he was robbing them. His shield was openly displayed on a chain around his neck. He asked the driver what he was doing. The driver was "cooperative", while the passenger was agitated. PO Gutierrez asked the men to step out of the car. He did so because the men inside the car were "fidgiting and moving," and he wanted to be sure to protect his safety and that of his partners. PO Gutierrez noticed the police recruit guide sitting on the backseat, in plain view. He told Sgt. Festino what he had seen. The two men exited the vehicle. The passenger asked PO Gutierrez to identify himself and he showed the man his shield, noting his badge number. The driver of the vehicle, later identified as § 87(2)(b) had a conversation with Sgt. Festino. Minutes after that, "everything was copacetic." § 87(2)(b) kept telling the passenger, later identified as § 87(2)(b) § 87(2)(b) to "shut your mouth; let's get the hell out of here." PO Gutierrez stated that that was about all he remembered about the incident.

PO Gutierrez stated that one of the men was able to produce identification showing that he lived inside of the building, § 87(2)(b). He did not recall which man it was. "After that, it was just 'hey, have a nice night.'" A Stop and Frisk report was not prepared because no search of the vehicle was conducted. PO Gutierrez said, "We did not frisk them at all. So I don't recall frisking them, so, I mean it was to the point of 'okay, by-bye' and that's it."

PO Gutierrez stated that his reason for initially approaching and detaining the men in the car was "high crime area and the fact that it was two in the morning, there was two guys in the car . . ." The car was inside the parking lot, but it was not in a parking space, but positioned in "the middle of the lot." PO Gutierrez attempted to explain his understanding of the common law right of inquiry: "anytime a police officer feels that there's a crime about to be committed or is committed, there's a right to stop and ask a person for his pedigree and to ask them their business for being in a certain area."

PO Gutierrez provided more details under questioning. Attempting to explain the observed evasiveness of the men, PO Gutierrez stated that the passenger, § 87(2)(b) did not make eye contact and had a look of "disdain" on his face. PO Gutierrez stated that neither man initially stated that they lived at the location, even though it was discovered later that one of them in fact did live in the building. Initially, they did not say very much, and PO Gutierrez again emphasized their evasiveness and agitation. Because of this attitude, and the fact that it raised their suspicion, all three of the officers exited the van.

PO Gutierrez went to the driver's side. He noticed the police department recruit guide sitting on the backseat in plain view after he asked § 87(2)(b) for ID. § 87(2)(b) was "agitated" and "fidgiting," and PO Gutierrez did not know what was under their seat or behind them inside the car. PO Gutierrez and his

partners asked the men to step out of the car for their own safety. PO Gutierrez emphasized the fact that that is a high crime area, and that he had a legitimate concern for his own safety and that of his partners. But he then stated that, after removing him from the vehicle, he did not pat down the driver, "At least, I don't recall." He said, "When they stepped out of the car, I looked for any bulges . . . I also wanted to make sure that his hands were at his sides at all times." PO Gutierrez was unaware if either of his partners patted down § 87(2)(b).

The two men were asked to come to the back of the vehicle. PO Gutierrez again asked § 87(2)(b) for his ID. Both men were told that if they produced ID showing that they lived in the building they would be allowed to go on their way. PO Gutierrez could not recall "the extent of the conversation that took place at that time," only that it took "quite a while" to get ID out of them, 20 to 25 minutes. PO Gutierrez stated that it was not an arrest situation, and that they did not have the authority to dig inside their pockets for their ID. It was simply, "information that we wanted."

PO Gutierrez did not recall if he at any time examined the police department handbook that was inside the car. He notified Sgt. Festino that "there was something in the car you should see." He never reached into the car to examine the book. Nor did he ever search the car, as there was no need to do so. PO Gutierrez believed that Sgt. Festino may have asked § 87(2)(b) about the PD recruit handbook. PO Gutierrez did not ask either man about the book. He did not recall what explanation § 87(2)(b) gave for the presence of the guidebook. PO Gutierrez said that § 87(2)(b) spoke "pretty much" with Sgt. Festino and not with him. Whatever was said between § 87(2)(b) and Sgt. Festino was not his concern. When asked if he questioned either man about applying to the police academy, PO Gutierrez stated, "No. Like I said, I don't recall."

PO Gutierrez stated that neither man was frisked or searched at the scene. PO Gutierrez denied searching a bookbag inside the car. PO Gutierrez did not recall any verbal altercation between himself and § 87(2)(b). He did not discuss speaking with an investigator about a background check for admission to the academy. He denied that he threatened to tell § 87(2)(b)'s investigator not to hire him. He denied referring to either man as a "jailhouse lawyer courtesy of Rikers Island." He did not recall if he apologized to either man after the incident. He did not know if either of his partners did so.

No arrest was made and no summons was issued at the scene. The men had committed no violation. No UF-250 was prepared. PO Gutierrez later said that "what they were doing was just a violation," but he did not elaborate on what he meant by that. He never said, "You guys are beneath me; why would I apologize to you."

### **Sgt. Raymond Festino**

Sgt. Festino of Brooklyn North Anti-Crime was interviewed on July 30, 2003, at the CCRB (encl. 9a-c).

Sgt. Festino provided the following narrative of the incident: at around 2 or 3 in the morning, in the course of their routine patrol, he and his partners observed a suspicious car inside the parking lot of § 87(2)(b). They watched it for "a few minutes", observing that the car's engine was running and that there were two males seated inside. The officers determined that they would "roll up to them." They drove their unmarked van into the parking lot and stopped it so that the driver's side window of the van was directly across from the driver's side window of the car. The officers identified themselves as police officers and started to question the driver of the car, § 87(2)(b) as to what he was doing. Sgt. Festino stated that "Right off the bat, the driver was extremely agitated and evasive with his answers." Asked if he lived there, § 87(2)(b) stated that he did not have tell the police officers what he was doing. At that point, the officers pulled the van over to the side, exited the van, and had the occupants of the car exit their vehicle and proceed to the back of the car so that the officers could speak to them face to face. Sgt. Festino noted that the passenger, § 87(2)(b) § 87(2)(b) was a "very tall guy."

Sgt. Festino stated that, as he spoke with the two men, PO Gutierrez informed him that there was a Police Department manual inside the car. Sgt. Festino then tried to ascertain if either of the two men was a police officer. Meanwhile PO Gutierrez took the manual out of the car. Neither man answered when Sgt. Festino asked which one of them was a cop. Sgt. Festino asked them how they came into possession of the manual. Still neither man answered his question. Sgt. Festino noted that § 87(2)(b) was "very agitated" at that point. Sgt. Festino spoke to § 87(2)(b) the passenger, who stated that he was § 87(2)(b). Sgt. Festino asked him for his tax number, and § 87(2)(b) gave him an NYPD tax number. Sgt. Festino believed that § 87(2)(b) was, in fact, a police officer, and began to wonder if the man was unfit for duty, having failed to ID himself properly. § 87(2)(b) stated that he used to be a cop but was § 87(2)(b) now. As he spoke



with § 87(2)(b) Sgt. Festino heard snatches of what § 87(2)(b) was saying to his partners, which included mentioning the Police Academy and “stuff like that,” but he was more focused on § 87(2)(b) believing that he was a police officer.

§ 87(2)(b) claimed not to have ID, but Sgt. Festino stated that he “had no right to touch him,” and therefore did not conduct a search of the man’s pockets to see if he had an ID on him. Sgt. Festino was forced to accept at face value § 87(2)(b)’s assertion that he was not a cop. § 87(2)(b) never gave Sgt. Festino his name. Sgt. Festino stated that that was pretty much the extent of their interaction with the two men at the scene. § 87(2)(b) remained agitated, but Sgt. Festino stated that they “had nothing” as far as evidence of criminal activity. He stated that the reason why they decided to speak to the two men was on a suspicion that they could have been trespassing in the area. They let the men go without arresting them or issuing them a summons. Sgt. Festino stated that, upon receipt of the CCRB notification, on which appeared the names of the two complainants, he checked to see if either man was currently or had ever been members of the NYPD. NYPD had no record of either man. Asked if he glossed over any details of the incident that pertained to the allegations, Sgt. Festino stated that there was no search of the vehicle conducted and that neither man was touched “at all.”

Sgt. Festino stated that he and his partners spotted the suspicious car as they were driving by the parking lot, and stopped across the street to observe it. They were “maybe 100 feet” away from the car. Sgt. Festino stated that he “could not tell” how long they observed the car. The car’s lights were on, leading Sgt. Festino to believe that its engine was running. Sgt. Festino stated that that area is known to have a high incidence of violent crime. Because the civilian auto was stopped by the back door of a building with the engine running, and had been there for a little while, Sgt. Festino found its presence there suspicious. The decision to approach the vehicle in the parking lot was a “collective” decision.

Sgt. Festino characterized their initial approach of the civilian auto as an “inquiry.” One thing that they wished to establish was if the men lived there. If the men did not live in the building, their presence there would constitute trespassing. PO Gutierrez, the driver of the van spoke to them first. He identified himself as a police officer and asked the men what they were doing there, if they lived there, if they were waiting for somebody. Sgt. Festino could not recall what the men said they were doing there. He reiterated that their answers to basic questions were “evasive”, and that the driver, § 87(2)(b) was clearly agitated. Sgt. Festino said that § 87(2)(b) may have answered the questions by asking why he was being stopped. Neither man confirmed or denied that he lived in the building. For this reason, the officers chose to escalate the level of the stop.

The officers asked the men to step out of the car and move to the rear of the car. Sgt. Festino stated that this was done for the safety of the officers, because he did not know what the men were doing in the car. Sgt. Festino was confident that he did have the right to make the two men get out of the car at that time. Sgt. Festino stated that § 87(2)(b) was “so evasive and agitated” that Sgt. Festino considered § 87(2)(b) more approachable and chose to speak to him primarily. It was as the men exited the car that Sgt. Festino was made aware of the presence of a PD manual inside the car. PO Gutierrez picked up the manual from somewhere in the back seat area, and held it up for Sgt. Festino to see. Sgt. Festino was not sure if PO Gutierrez reached through an open window or an open door to pick up the manual, nor could he say exactly where the manual was located inside the vehicle. PO Gutierrez placed it back inside the car after showing it to Sgt. Festino. Sgt. appeared unsure of the exact nature of the manual, speculating that it could have been a copy of the Patrol Guide. This volume is distributed in the Police Academy. The Patrol Guide is property of the NYPD.

As he stated before, the presence of the patrol guide made Sgt. Festino believe that one or both of the men was a cop. At this time he had the conversation with § 87(2)(b). Neither man was ever handcuffed, and neither man was ever frisked or searched. Sgt. Festino was not aware of either of his partners ever frisking either man. Sgt. Festino was aware that § 87(2)(b) remained very agitated as PO Nasso and PO Gutierrez spoke to him. He did not know why the man was agitated. Sgt. Festino reported that § 87(2)(b) did at that point tell him that he lived upstairs but did not have ID on him. Sgt. Festino believed that § 87(2)(b) was telling the truth about living in the building.

Sgt. Festino denied ever touching the car. He never opened a door of the car. Sgt. Festino appeared to equivocate when asked if PO Gutierrez ever searched the car, saying, “I didn’t see anybody . . . there was, it was too quick. There was no time to search the car.” Sgt. Festino asserted that PO Gutierrez retrieval of the Patrol Guide from inside the car did not constitute a search of the car. Sgt. Festino dismissed the notion that there could have been a time during the incident where his attention was drawn away from what his partners were doing when PO Gutierrez could have searched the car.

PO Gutierrez tried to talk to § 87(2)(b) but § 87(2)(b) refused to give him any information. Sgt. Festino believed that § 87(2)(b) did show PO Gutierrez an ID toward the end of the interaction. Sgt. Festino stated that § 87(2)(b)'s voice was raised, but denied that the interaction between PO Gutierrez and § 87(2)(b) constituted an argument or verbal altercation. PO Gutierrez's voice was not raised. Meanwhile, PO Nasso was with Sgt. Festino most of the time.

Sgt. Festino never heard § 87(2)(b) state that he was applying to the police academy. He stated that, had he heard anything to that effect, he would have stepped in to sort it out, as the supervisor on the scene. Sgt. Festino explained that it was important to establish whether either man was a police officer because an officer is obligated to ID himself, which both men failed to do. If either man had been a police officer, the circumstances of the incident may have indicated that they were unfit for duty, and Sgt. Festino understood that he needed to take a supervisory role in establishing whether either man was a cop. Sgt. Festino never heard PO Gutierrez tell § 87(2)(b) that he would sabotage his chances of admission to the Police Academy. Sgt. Festino never heard PO Gutierrez say, "Great, now we have two jailhouse lawyers courtesy of Rikers Island."

Sgt. Festino did not apologize to the men when he left the scene, not being fully satisfied by the answers he got, but also not having "much else" he could do. He did not know if either of his partners apologized. He did not hear PO Gutierrez say, "You guys are beneath me. Why would I apologize to you?"

#### **PD Documents**

§ 87(2)(g) Brooklyn North Anti-Crime did forward a copy of the **Stop and Frisk Log** for late January through early February, 2003, which shows that two UF-250s were prepared on 2/5/03, neither by any of the three officers involved in this case (encl. 11a).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### **Subject Officer Substantiation History**

Sgt. Festino had three allegations substantiated against him in CCRB case number 200200019. Sgt. Festino received command discipline for the misconduct, which included a bad vehicle stop, the threat of force, and discourtesy. Neither PO Nasso nor PO Gutierrez have any prior substantiated allegations on their CCRB histories. However, it should be noted that both PO Festino and PO Gutierrez have been named as subject officers in five pending CCRB cases in 2003, including this case, while PO Nasso is a subject officer in four 2003 cases.

#### **Conclusions and Recommendations**

##### **Officer Identification**

§ 87(2)(b) and § 87(2)(b) both accurately recalled the shield numbers of both PO Gutierrez and PO Nasso, allowing for their identification. The complainants stated that PO Gutierrez identified himself as 'Alvarez' at the scene, § 87(2)(g)

§ 87(2)(b) PO Gutierrez and PO Nasso confirmed their involvement in the incident and identified their sergeant as Sgt. Festino, who also confirmed his involvement in the incident.

§ 87(2)(g)

## Credibility

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation A: Sgt. Festino authorized the stop and questioning of § 87(2)(b) and § 87(2)(b)

Allegation B: PO Nasso frisked § 87(2)(b)

Allegation C: PO Gutierrez frisked and searched § 87(2)(b)

Allegation D: PO Gutierrez searched the car in which § 87(2)(b) was an occupant.

Allegation E: PO Gutierrez threatened retaliation if § 87(2)(b) made a civilian complaint.

Allegation F: PO Gutierrez spoke rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g), § 87(4-b)

[REDACTED]

#### **Allegation A**

Subsection E of Penal Law 140.10, criminal trespass, notes that a person is guilty of criminal trespass if that person remains on public housing property in violation of regulations governing entry and use of that property. § 87(2)(g)

[REDACTED]

[REDACTED]

§ 87(2)(g)

[REDACTED]

#### **Allegations B and C**

§ 87(2)(g)

[REDACTED]

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED].

As Barry Kamins notes in *New York Search and Seizure*, an officer’s decision to frisk an individual “must be based on a reasonable suspicion that the suspect is armed” (159). § 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

#### **Allegation D**

§ 87(2)(g) [REDACTED]  
[REDACTED] PO Gutierrez denied that he ever searched the vehicle, and stated that he did not pick up and examine the Police Department materials that he saw inside the car. § 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

#### **Allegation E**

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(g) [Redacted text block]

**Allegation F**

§ 87(2)(g) [Redacted text block]

§ 87(4-b) § 87(2)(g) [Redacted text block]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: